

25LBCV00339 25LBCV00339

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 25LBCV00339 Hearing Date: June 25, 2026 Dept: S27

1. Complaint

Plaintiff, Sam Heigle, solely in his capacity as duly appointed Receiver for California Oil Partners, Inc. and Osage Logging Company, Inc., dba Osage Land Company in the State of Oklahoma filed this action against Defendants, California Oil Partners, Inc. and Osage Logging Company, Inc., dba Osage Land Company for appointment of an ancillary receiver and declaratory relief. The crux of the complaint is that a court in Oklahoma appointed Plaintiff as the receiver over the two defendant entities, but they operate business in California, such that appointment of an ancillary receiver is necessary.

2. OSC

re: Proof of Service

Plaintiff filed his complaint on 2/10/26. On 2/17/26, Plaintiff filed proof of service of the summons, complaint, and related documents by substitute service on California Oil Partners, Inc. On 3/16/26, Plaintiff filed this motion for appointment of ancillary receiver, serving it by mail on each of the two defendant entities. On 4/22/26, Plaintiff filed proof of service of the summons, complaint, and related documents on Osage Logging Company, Inc. by mail.

On 4/22/26, Plaintiff also filed a response to the Court's scheduled OSC re: proof of service. Plaintiff explained that there is actually no defendant to be served in this action, because Plaintiff is acting as the receiver over all aspects of each of the two defendants' businesses, such that he would

be the person upon whom service would be effectuated. He explains that he did serve California Oil Partners, Inc. by serving its then-acting registered agent for service. He explains that, when he attempted to serve Osage, it was more complicated, as Osage does not have a registered agent for service of process, and when Plaintiff attempted to serve Osage through its last known agent in Oklahoma, the agent refused service, indicating service would need to be made on the receiver (Plaintiff). Plaintiff notes that it served Osage by registered mail, return receipt requested, and Osage promptly returned the receipt.

On 4/27/26, the Court held an OSC re: proof of service. The Court found not all parties had been served, and continued the OSC to 6/25/26.

CCP §415.40 permits service on an out-of-state person by sending a copy of the summons and complaint to the person by mail, requiring a return receipt. Service of the summons is deemed complete on the tenth day after such mailing.

The Court is satisfied, under the circumstances detailed in the 4/22/26, with Plaintiff's service of the summons, complaint, and related papers on Defendants. The OSC re: proof of service is discharged.

3. Motion for Appointment of Ancillary Receiver

The Court notes that the authority cited by Plaintiff is approximately 100 years old. The Court attempted to locate more proximate authority, but was unable to do so. The Court has therefore relied on the authorities cited by Plaintiff.

California courts apply a comity-based framework when a foreign receiver seeks recognition or the appointment of an ancillary receiver. Receivers appointed under another jurisdiction may be permitted to sue in California as a matter of comity, wherever the rights of local creditors are not prejudiced (*Smith v. Shepler*, 8 Cal.App.2d 717 (1935)), (*Canfield v. Scripps*, 15 Cal.App.2d 642 (1936)). However, California courts will not subordinate the rights of domestic creditors to those of a foreign receiver. As between the receiver of an insolvent foreign corporation appointed

under the laws of another state and a domestic attaching creditor claiming a fund situated in California, the court will decree the fund to the domestic creditor without reference to the legality of the receiver's appointment or as to the receiver's rights under the laws of the state of appointment (*Lackmann v. Supreme Council O.C.F.*, 142 Cal. 22 (1904)). This principle extends to indirect attempts: an ancillary receiver will not be appointed in an action by a foreign receiver where the sole purpose is to collect funds and turn them over to the foreign receiver, as this would effectively transfer assets contrary to the preferences of California law (*Clark v. Supreme Council of Order of Chosen Friends*, 146 Cal. 598 (1905)).

The Court has reviewed the moving papers and finds Plaintiff established a proper appointment of a receiver in Oklahoma, assets in the State of California over which receivership is necessary, and lack of prejudice to California creditors. Plaintiff has also established that the proposed receiver (Plaintiff) is qualified under California law, and that his appointment is necessary to carry out the collection of payments due to the plaintiff in the Oklahoma action.

The Court is in receipt of Plaintiff's proposed order, lodged on 3/16/26 with the moving papers, and will process the order at the conclusion of the hearing.

Plaintiff is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.